

Summary

Deny the petition as to the 5 causes of action identified in the 3/17/26 claim because Petitioner has not established excusable neglect or qualifying incapacity. Any independently pled FEHA causes of action do not require section 946.6 relief.

Case dismissed.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2408331	GUERRERO VELAZQUEZ vs PRITCHARD SPORTS & ENTERTAINMENT GROUP, LLC,	MOTION TO COMPEL PLAINTIFF TO APPEAR FOR DEPOSITION AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling:

Moving party: Defendants Pritchard Sports & Entertainment Group, LLC;
Samuel Salinas; and Lisa Avalos

Responding party: Plaintiff Aurora Guerrero Velazquez

This is a Fair Employment and Housing Act (“FEHA”) and wage and hour matter. Aurora Guerrero Velazquez (“Plaintiff”) was hired by Pritchard Sports & Entertainment Group, LLC (“Pritchard”) as a custodian. While at work, on two separate occasions, Plaintiff fainted and hit her head. She had to take short medical leave of absences due to these incidents. She contends that she was harassed by her supervisor Lisa Avalos (“Avalos”) for taking leave. She alleges that she was retaliated against for taking leave and was required to work outside in over 90-degree weather. While working in these conditions, Avalos belittled and harassed her. She was unable to cope with the harassment and dangerous working conditions and left work early. The next day, her manager Samuel Salinas (“Salinas”), attempted to pressure her to sign a disciplinary warning for leaving work early. When she attempted to tell Salinas about the harassment, she was terminated.

The complaint asserts the following causes of action: (1) discrimination; (2) harassment; (3) retaliation; (4) failure to prevent discrimination, harassment, and retaliation; (5) failure to provide reasonable accommodations; (6) failure to engage in a good faith interactive process; (7) declaratory relief; (8) wrongful termination in violation of public policy; (9) violation of the Ralph Civil Rights Act; (10) violation of the Tom Bane Civil Rights Act; (11) negligent supervision and retention; (12) failure to pay wages; (13) failure to provide meal and rest periods; (14) failure to provide itemized wage and hour statements; (15) waiting time penalties; and (16) unfair competition.

Pritchard, Avalos, and Salinas bring this motion seeking to compel Plaintiffs’ deposition. They contend that Plaintiff has failed to appear at two properly noted and agreed upon depositions. They seek sanctions in the amount of \$18,373. No memorandum of points and authorities has been filed with this motion.

In opposition, Plaintiffs contend that she could not appear for her depositions due to medical emergencies. She asserts that she does not oppose the request compelling her deposition (she is not refusing to attend deposition), but asks that she have 15 days from the issuance of the court's order to complete her deposition. She also asserts that sanctions are not warranted because her failure to appear at her depositions were due to unforeseen medical circumstances.

In reply, Defendants assert this motion should be granted. They contend that Plaintiff has failed to provide any evidence to support her assertion that her failure to appear was due to unforeseen medical circumstances.

Analysis

While the notice indicates a memorandum of points and authorities was to be filed with this motion. No points and authorities were filed with the motion on 7/2/2026, however after notice from the Court, movant filed points and authorities on 8/19/2026. California Rules of Court, rule 3.1112(a)(3) requires that a memorandum of points and authorities be filed in support of a motion.

Service of a proper deposition notice is sufficient to compel a party or the employee of a party to appear, testify, and produce records in their possession without a subpoena. (CCP §2025.280(a).) If a party deponent fails to appear or produce documents, without having serviced a valid objection under CCP § 2025.410, the party giving the notice may move for an order compelling the deponent's attendance, testimony, and production of documents. (CCP § 2025.450(a).) Such a motion must be accompanied by a meet and confer declaration under CCP § 2016.040, or when the deponent failed to attend the deposition, a declaration stating that the moving party contacted the deponent to inquire about the nonappearance. (CCP § 2025.450(b)(2).) "Implicit in the requirement that counsel contact the deponent to inquire about the nonappearance is a requirement that counsel listen to the reasons offered and make a good faith attempt to resolve the issue." (*Lelo v Cornerstone Building Inspection Service* (2001) 86 Cal.App.4th 1109, 1124.)

Plaintiff failed to appear at two noticed depositions. The first one was canceled the morning of the deposition, based on the assertion that Plaintiff was having a medical emergency. There is a dispute over whether Defendants' counsel was notified before the second deposition that Plaintiff was again having a medical emergency and was unable to appear. Based on Plaintiff's counsel's declaration, she provides that on the morning of the second deposition, she was "informed that Plaintiff was experiencing an unforeseen medical emergency and would be unable to participate in her remote deposition that day. I promptly communicated this information to Defendants' counsel." (Declaration of Samantha Ortiz, ¶ 5.) However, in Defendants' counsel's declaration and the certificate of non-appearance, counsel in attendance to represent Plaintiff (which was not the same individual who provided the declaration in opposition) attempted several times after Plaintiff failed to appear to contact her but could not reach her. (Declaration of Athalia I. Magana, ¶ 15 and Exhibit 9, 3:9-11.) Based on the evidence provided by Defendants, it was not clear at the time Plaintiff's certificate of

non-appearance was taken that she was having another medical emergency. Defendants' counsel has provided evidence that counsel reached out to inquire about the nonappearance several times. Counsel spoke at the deposition, which is reflected by the certificate of non-appearance and counsel followed up in emails about alternative deposition dates. (Declaration of Athalia I. Magana, ¶¶ 15-17 and Exhibit 9.)

Plaintiff does not oppose the granting of the request to compel her to deposition. She asks that she be given 15 days from the Court's order to have her deposition completed. In reply, Defendants agree to this request. As such, **the motion is granted as to the request to compel Plaintiff to deposition, and the deposition is ordered to be completed within 15 days of the Court's order.**

Plaintiff does oppose the request for sanctions. Under CCP § 2025.450(g)(1), if a motion to compel a deposition is granted the court must impose sanctions unless doing so is unjust or the opposing party acted with substantial justification. Under California Rules of Court, rule 3.1348, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." Plaintiff argues that imposing sanctions would be unjust because her failure to appear was due to unforeseen medical issues. However, Plaintiff fails to provide any evidence to establish that she had unforeseen medical issues. No declaration has been provided by Plaintiff. Due to this failure sanctions are awarded.

The \$18,373 sought by Defendants is excessive. Since it appears that Defendant's counsel and the attorney representing Plaintiff were not aware before the second deposition started that she would not be appearing, the **Court awards the entire \$1,395 in costs incurred** for the second deposition, including the fee for taking the certificate of non-appearance.

Since Defendant's counsel was aware that Plaintiff would not appear for her first noticed deposition before the deposition occurred, the \$450 in costs for a certificate of non-appearance was not necessary. As such, the Court reduces the \$1,840 in fees sought for Plaintiff's failure to appear for this deposition to \$1,390.

Defendants' counsel seeks to recoup fees for 21 hours spent on preparing for the deposition and discussing this matter with Plaintiff's counsel. These are things that Defendants' counsel was required to do anyways. The Court will not pass these expenses on to Plaintiff. Doing so would be unfair. Defendants' counsel asserts that she will spend 8 hours on this motion. This amount appears high for such a straightforward motion.

Therefore, **the Court awards \$4,185** in sanctions (\$1,390 for the fees for the first deposition + \$1,395 for the fees for the second deposition + \$1,400 (\$350 an hour x 4 hours) in fees for preparing this motion). Sanctions are payable within 15 days of this order.